

**TENTATIVE RULINGS  
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

**Judge Jonathan Fish**

**July 17, 2026  
Continued from July 13, 2026**

**LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.**

**Court Reporters:** Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

**Tentative Rulings:** The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

**Submitting on tentative rulings:** If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

**Non-appearances:** If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4<sup>th</sup> 436, 442, fn. 1.)

**Appearances: Remote and In-Person Proceedings.** Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

| # | Case Name                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
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| 1 | <p>Alonso vs. Barrera</p> <p>2025-01497561</p> | <p>Motion to Confirm Offsets</p> <p>Defendant/cross-complainant Emilia Barrera’s motion to confirm offsets is denied.</p> <p>Barrera moves for an order confirming she is entitled to \$708,887 in offsets, and that she may apply this amount as a “credit bid in a purchase of any interest the Plaintiff may hold in the Property.”</p> <p>The general partition statute is found in CCP sections 872.01 to 874.240. Under the general partition statute: the “interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action.” (Code Civ. Proc., § 872.610.) At trial, the court must first determine whether plaintiff has the right to partition. (Code Civ. Proc., § 872.710, subd. (a).) <i>“If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.”</i> (Code Civ. Proc., § 872.720, emphasis added.) The court conducts a “final accounting” to determine the “charges and credits upon each co-tenant’s interest.” “Credits include expenditures in excess of the co-tenant’s fractional share for necessary repairs, improvements that enhance the value of the property, taxes, payments of principal and interest on mortgages, and other liens, insurance for the common benefit, and protection and preservation of title.” (See <i>Wallace v. Daley</i> (1990) 220 Cal.App.3d 1028, 1035–1036; Miller &amp; Starr, Cal. Real Est. (4th ed.) § 11:15 [“After the trial, the court determines the interests of the various parties and the priority of all liens”].)</p> <p>By this motion, Barrera attempts to put the cart before the horse. The Court finds it would be premature to “confirm offsets” and declines to rule on the issue of credits and offsets before the issue of partition has been determined. Further, the credits and offsets sought by both sides is not properly determined by law and motion, or by the “supplemental declarations.”</p> <p>Plaintiff shall give notice of the ruling.</p> |

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|   |                                                                   | Case Management Conference<br>Order to Show Cause re: Dismissal re: Default Judgment<br>Order to Show Cause re: Dismissal for Failure to Serve                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 2 | Bowie vs.<br>NuEyes<br>Technologies,<br>Inc.<br><br>2025-01501793 | Motion to Strike Answer<br><br><b>Off Calendar</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 3 | Brainard vs.<br>Brainard<br><br>2025-01499684                     | <p>Motion to Compel Answers to Form Interrogatories<br/>Motion to Compel Answers to Special Interrogatories<br/>Motion to Compel Production<br/>Motion to Deem Facts Admitted</p> <p>Defendant Bartley Thomas Brainard's unopposed motions to compel responses from Plaintiff Bradley Alan Brainard to his form interrogatories, set one, special interrogatories, set one, and request for production of documents, set one, are granted. Plaintiff is ordered to serve verified responses without objection to Defendant's discovery requests within 20 days of the notice of the ruling.</p> <p>Defendant's unopposed motion to deem facts admitted in response to his requests for admission propounded on Plaintiff is also granted.</p> <p>On 12/17/25, Defendant electronically served Form Interrogatories, Special Interrogatories, Requests for Production and Requests for Admission on Plaintiff. (Sternad Decl., ¶¶ 3, 24; Exs. 1, 7.) Defendant followed with a letter informing Plaintiff that he would not be allowing any extensions. (Sternad Decl., ¶ 4, Ex. 2.) As of the date of the filing of this motion (1/29/26), Plaintiff had not served any responses. (Sternad Decl., ¶ 7.)</p> <p>Plaintiff has not opposed these motions.</p> <p>Because Defendant demonstrated that the discovery requests were served on Plaintiff, the deadline has passed, and no responses were served or have been served as of the date of the hearing, orders compelling responses and production and deeming the requests for admission admitted are appropriate. (See Code Civ. Proc., §§ 2030.290, 2031.300, 2033.280.)</p> <p>The Court imposes monetary sanctions against Plaintiff in the amount of \$860.00 per motion (\$3,440.00 total) payable to Defendant and its</p> |

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|   |                                                                           | <p>counsel within 30 days of the notice of ruling. (See Code Civ. Proc., §§ 2030.290(c), 2031.310(h), and 2023.010.)</p> <p>Defendant shall give notice of the ruling</p> <p>Case Management Conference</p> <p>Order to Show Cause re: Dismissal for Failure to Serve</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 4 | <p>Cortazo vs. Volkswagen Group of America, Inc.</p> <p>2024-01435460</p> | <p>Motion to Compel Further Responses to Form Interrogatories</p> <p>Motion to Compel Further Responses to Special Interrogatories</p> <p>Motion to Compel Production</p> <p>Motion to Compel Response to Requests for Admissions</p> <p>Plaintiffs Emily Cortazo and Teresa Cortazo Romano’s motion to compel defendant Volkswagen Group of America, Inc. to provide further responses to form interrogatories, set one, is substantively moot.</p> <p>Plaintiffs’ motion to compel Defendant to provide further responses to special interrogatories, set one, is substantively moot except as to no. 30. The motion is granted as to no. 30.</p> <p>Plaintiffs’ motion to compel Defendant to provide further responses to requests for production, set one (“RFPs”), is substantively moot except as to no. 34. The motion is granted as to no. 34.</p> <p>Plaintiffs’ motion to compel Defendant to provide further responses to requests for admission, set one (“RFAs”), is substantively moot.</p> <p>Plaintiff is awarded total sanctions of \$937.77 against Defendant. Defendant Volkswagen Group of America, Inc. is to pay this amount to Plaintiff’s counsel, Knight Law Group LLP, no later than August 17, 2026.</p> <p><b>Motion to Compel Further Responses to Interrogatories</b></p> <p>A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete. Code Civ. Proc. § 2030.300(a)(1). The motion must be brought within 45 days of the day responses were served (with 5 extra days if the responses are served by mail). Code Civ. Proc. §§ 2030.300(c), 2016.050, 1013.</p> <p>If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal. 4<sup>th</sup> 245, 255.</p> |

Prior to filing such a motion, the moving party must meet and confer with the responding party in a reasonable and good faith attempt to informally resolve each issue that would be presented by the motion. Code Civ. Proc. § 2030.300(b); § 2016.040.

Because Defendant served supplemental responses, the court might find that the motion is moot, denying the motion on that basis and leaving Plaintiff to meet and confer further on the supplemental responses and bring a new motion. But the court can also proceed if that is feasible.

In *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*(2007) 148 Cal.App.4<sup>th</sup> 390, the court ruled that service of untimely discovery responses did not divest the trial court of jurisdiction to hear the motion to compel responses. *Id.* at 396. The court noted that it remains within the trial court's discretion whether to proceed with the motion when a response is served after the motion to compel has been filed. *Id.* 405-07.

*Form Interrogatories*

Plaintiff moved to compel a further response to form interrogatory no. 15.1. Defendant has served a supplemental response to that interrogatory and Plaintiff has not contended that the supplemental response is insufficient. Accordingly, the motion substantively moot.

*Special Interrogatories*

Plaintiff moved to compel further responses to special interrogatory nos. 30, 42, and 43. Defendant served supplemental responses to nos. 42 and 43. Plaintiff has not contended that these supplemental responses are insufficient. Accordingly, the motion is moot as to these special interrogatories.

Defendant did not, however, serve a supplemental response to special interrogatory no. 30, so it remains in issue.

**SPECIAL INTERROGATORY NO. 30:** Did the person(s) that evaluated the repurchase request for the SUBJECT VEHICLE have access to the warranty repair rates for the components that were the subject of warranty claims in the SUBJECT VEHICLE?

**RESPONSE TO SPECIAL INTERROGATORY NO. 30:** VWGoA objects to this interrogatory on grounds that it is overbroad, vague, ambiguous, vague as to time, not reasonably calculated to lead to the discovery of

admissible evidence, and impermissibly compound or conjunctive in violation of Code of Civil Procedure section 2030.060(f).

Defendant has not justified these objections, which on their face are not merited. Rather, Defendant asks the court to limit discovery. [See Defendant's Separate Statement (ROA #142( at 4-5.) For such relief, Defendant needed to bring a motion for protective order.

Defendant argues that Plaintiffs did not meet and confer sufficiently and in good faith. The court disagrees.

The motion to compel further response as to special interrogatory no. 30 is granted.

### **Motion to Compel Further Responses to RFPs**

Where there has been a response to RFPs that the propounding party finds inadequate, then the Code provides for a motion and order compelling production upon a showing of good cause, prior meeting and conferring, and the filing of a separate statement. Code Civ. Proc. § 2031.310(b)(1) and (2); CRC 3.1345; Cal. Prac. Guide, Civil Procedure before Trial §8:1494.1.

In order to meet the burden of showing good cause, the moving party must show: (1) relevance to the subject matter and (2) specific facts justifying discovery. Weil & Brown, Cal. Civ. Proc. Before Trial, 8:1495.6 (The Rutter Group 2011). Declarations are generally used to show good cause, and they must contain specific facts and not mere conclusions. *Id.* at 8:1495.7. If the moving party demonstrates good cause, then the opposing party must justify any objections. *Kirkland v Superior Court* (2002) 95 Cal. App. 4<sup>th</sup> 92, 98.

Plaintiff moved to compel further responses to RFP nos. 18, 33, 34, 45, and 46. Defendant served supplemental responses to nos. 18, 33, , 45 and 46. Plaintiff has not contended that these responses are insufficient. Accordingly, the motion is moot as to these RFPs.

Defendant did not, however, serve a supplemental response to RFP no. 34, so it remains in issue.

### **REQUEST FOR PRODUCTION NO. 34:**

All Recalls that have been issued for the same year, make, and model as the SUBJECT VEHICLE.

**RESPONSE TO REQUEST FOR PRODUCTION NO. 34:**

VWGoA objects on grounds that Plaintiffs have not designated the items being sought for production by specifically describing each individual item or by reasonably particularizing each category of item (CCP § 2031.030 (c)(1)). VWGoA also objects to this request on grounds that it is overbroad and thus not reasonably calculated to lead to the discovery of admissible evidence as stated. VWGoA further objects on grounds that it is invasive of the trade secret privilege and seeks confidential and proprietary business information, disclosure of which could damage VWGoA's competitive position in the marketplace. Subject to and without waiving the foregoing objections, VWGoA will produce herewith any recalls pertaining to any warranty repairs performed on the subject vehicle during Plaintiffs' ownership thereof. See Exhibit G.

Plaintiffs address good cause in their separate statement. [*See* Plaintiff's Separate Statement (ROA # 83) at 2, 7, 8; Thomas Decl. (ROA #87).]

Again, Defendant objects that Plaintiffs did not meet and confer sufficiently. Defendant does not attempt to justify its objections or its response.

The motion to compel further response a to RFP no. 34 is granted.

**Motion to Compel Further Responses to RFAs**

After receiving responses to requests for admission that a party finds evasive or incomplete a party may move for further responses. Code Civ. Proc. §2033.290(a). The motion must be accompanied by a declaration showing a good faith attempt to meet and confer and a separate statement. Code Civ. Proc. §2033.290(b).

Plaintiff moved to compel further response to RFA nos. 13 and 14. Defendant served supplemental responses to both of these RFAs. Plaintiff has not contended these supplemental responses are insufficient.

Accordingly, the motion substantively moot.

Plaintiff to give notice.

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| 5 | <p>Holland vs. South Orange County Community College District</p> <p>2022-01265727</p> | <p>Motion re: Excluding Evidence</p> <p>The motion by Defendant South Orange County Community College District (“Defendant”) for an order excluding any evidence pertaining to Dr. Mark Ritchie pursuant to CCP section 2023.030, subdivision (b) and (c) is DENIED.</p> <p>Pursuant to Code of Civil Procedure section 2023.030, the court may issue terminating, evidentiary, issue, and/or monetary sanctions against a party engaging in conduct that is a misuse of the discovery process. Misuse of the discovery process includes: failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; and making an evasive response to discovery. (Code Civ. Proc. § 2023.010, subd. (d), (e), and (f).)</p> <p>Defendant has not shown Plaintiff Joy M. Holland engaged in conduct that constitutes a misuse of the discovery process. To the extent Defendant was unable to take Dr. Mark Ritchie’s deposition, Defendant withdrew Defendant’s motion to compel Dr. Ritchie’s deposition the morning of the hearing on the motion, after viewing the Court’s tentative ruling to deny the motion. (Notice of Withdrawal, ROA No. 248.) Contrary to Defendant’s contention, Defendant sought an order compelling Dr. Ritchie to comply with the deposition subpoena and was not simply an order compelling records as Defendant now contends in Defendant’s reply. (Motion to Compel, ROA No. 188; Reply, ROA No. 400, 5:23-25 and 5:28-6:1.) In addition, Dr. Ritchie’s most recent communications do not show a refusal to appear for a deposition. (Walsh Decl., ¶¶ 9 and 13, Exhibits 7 and 10.) Rather, Dr. Ritchie sets forth the limits of the testimony absent patient authorization or court order. (<i>Id.</i>) Although Plaintiff refused to sign the provided authorization, Defendant also did not show the overly broad scope of the authorization was warranted. (<i>Id.</i>, ¶¶ 10-11, Exhibit 8.)</p> <p>Accordingly, the motion is denied.</p> <p>Plaintiff shall give notice.</p> |
| 6 | <p>Mall vs. City of Santa Ana</p> <p>2024-01372814</p>                                 | <p>Motion for Judgment on the Pleadings</p> <p>The motion for judgment on the pleadings by Defendant City of Santa Ana (“Defendant”) as to the first cause of action for wrongful constructive termination in violation of public policy alleged in the Complaint filed by Plaintiff Keith Mall (“Plaintiff”) is GRANTED.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |



Defendant's unopposed request for the Court to take judicial notice of the Complaint filed in this action is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may "simply call the court's attention to such papers." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9:53.1a.)

Defendant's unopposed request for the Court to take judicial notice that Defendant is a charter city is granted. (Evid. Code, § 452, subd. (h).) Defendant's unopposed requests for the Court to take judicial notice of Defendant's charter documents, request numbers 3, 4, and 5, are granted. (*Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 185; *Olson v. County of Sacramento* (1974) 38 Cal.App.3d 958, 964.) Defendant's unopposed requests for the Court to take judicial notice of portions of Defendant's municipal code are granted. (Evid. Code, § 452, subd. (b); *Madrigal v. City of Huntington Beach* (2007) 147 Cal.App.4th 1375, 1384.)

Contrary to Plaintiff's contention, Defendant satisfied Defendant's CCP section 439 meet and confer obligation. (Lustig Decl., ¶¶ 2-3, Exhibit 1.)

Pursuant to Government Code section 815, subdivision (a), a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (Gov. Code, § 815, subd. (a); *Miklosy v. Regents of Univ. of Cal.* (2008) 44 Cal.4th 876, 899, citing *Palmer v. Regents of University of California* (2003) 107 Cal.App.4th 899, 909 [Because the classic *Tameny* cause of action is a common law, judicially created tort, and not authorized by statute, it is not properly asserted against a public entity].)

There is no dispute that Defendant is a city and that Defendant is a public entity as defined under Government Code section 811.2. Plaintiff's first cause of action for wrongful constructive termination in violation of public policy is a common law liability that Plaintiff is attempting to impose against a public entity. Accordingly, the motion should be granted. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 899-900.)

Although Plaintiff correctly contends FEHA provisions may provide the policy basis for a claim for wrongful termination in violation of public policy, Plaintiff has not shown, nor cited to any legal authority that holds, a wrongful termination cause of action based on a FEHA violation may be properly maintained against Defendant, a public

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|   |                                                                               | <p>entity. To the extent <i>City of Moorpark v. Superior Court</i> (1998) 18 Cal.4th 1143 allowed a wrongful termination claim based on disability discrimination to proceed against a public entity, the California Supreme Court noted “the question of a public entity’s tort immunity under section 815 was not raised in that case. ‘It is axiomatic that cases are not authority for propositions not considered.’” (<i>Miklosy v. Regents of University of California</i> (2008) 44 Cal.4th 876, 900, fn. 7, citing <i>People v. Ault</i> (2004) 33 Cal.4th 1250, 1268, fn. 10.) Plaintiff did not identify any other statute to support Plaintiff’s contention that Plaintiff will be able to amend this cause of action to properly allege a cause of action for wrongful termination against Defendant, a public entity.</p> <p>Accordingly, Defendant’s motion is granted without leave to amend.</p> <p>Defendant shall give notice.</p>                                                                                                                                                                                |
| 7 | <p>Navarro vs.<br/>FCA US LLC</p> <p>2025-01486633</p>                        | <p>1. Demurrer to Amended Complaint<br/>2. Motion to Strike Complaint<br/>3. Case Management Conference</p> <p><b>Off Calendar</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 8 | <p>Phillips vs.<br/>Newport-Mesa<br/>School District</p> <p>2025-01474929</p> | <p>Motion to Compel Further Responses to Special Interrogatories<br/>Motion to Compel Production<br/>Motion to Compel Response to Requests for Admissions</p> <p>Plaintiff Trenae Phillips’ motion for order compelling defendant Newport-Mesa School District to provide further responses to requests for production, set one (“RFPs”) is substantively moot given the parties’ agreement on supplemental responses after further meeting and conferring. No sanctions are awarded.</p> <p>Plaintiff’s motion to compel defendant Corey Stone to provide further responses to requests for admission, set one (“RFAs”) is substantively moot given the parties’ agreement on supplemental responses after further meeting and conferring. Plaintiff is awarded sanctions of \$960 against Defendant Stone.</p> <p>Plaintiff’s motion to compel Defendant Stone to provide further responses to special interrogatories, set one, is substantively moot given the parties’ agreement on supplemental responses after further meeting and conferring. Plaintiff is awarded sanctions of \$480.</p> <p>Plaintiff to give notice.</p> |

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| 9 | <p>Torres vs. Alcala</p> <p>2023-01324923</p> | <p>Motions to Compel Production</p> <p>Defendant Truist Bank's motion to compel Plaintiffs Marty Torres' and Carlos Martinez's further responses to its requests for production of documents, set one, is granted.</p> <p>Defendant's request for sanctions is denied as it was not included in the notice of motion pursuant to Code Civ. Proc., § 2023.040.</p> <p>Plaintiffs' request for judicial notice is denied as a request for judicial notice must be made in a separate document. (CRC, Rule 3.1113.)</p> <p>Defendant Truist Bank seeks information regarding Decedent Lupy Martinez's medical history, in light of Plaintiffs' allegations that Decedent was incapacitated, and subject to undue influence and elder abuse. In opposition, Plaintiffs do not dispute that they are claiming this, arguing that Defendants Diana and Robert Alcala through conduct determined to be elder abuse by the probate court tricked Decedent into gifting them her home. (Opposition at 2:2-4.)</p> <p>Defendant has shown the medical information requested is relevant to these claims and while arguably private and privileged, it is discoverable. (See gen. <i>Britt v. Sup.Ct.</i> (1978) 20 Cal. 3d 844; <i>Pioneer Electronics (USA), Inc. v. Sup.Ct.</i> (2007) 40 Cal. 4th 360; <i>In re Lifschutz</i> (1970) 2 Cal.3d 415, 433.)</p> <p>The issue is whether the Probate Court's determination of Plaintiffs' Petition as to the decedent's will precludes this discovery.</p> <p>Specifically, on 6/14/22, the Probate Court decided the plaintiffs' Petition for (1) Invalid Will, (2) Undue Influence, and (3) Financial Elder Abuse, finding in Plaintiffs/Petitioners' favor after the Respondents (Diana Alcala and Robert Alcala) failed to oppose. The Court ruled that the real property located at 9171 Jennrich Ave., Westminster, CA 92683 was to be returned to Lupy Martinez's estate for administration. (Plaintiffs' Ex. 2.)</p> <p>Based on Code Civ. Proc., § 1908, Plaintiffs argue that Defendant fails to show good cause for the discovery because the Probate Court's Order renders the documents irrelevant and that Truist Bank cannot relitigate the issue of who is entitled to the subject property.</p> <p>Whether or not Code Civ. Proc., § 1908 does in fact preclude any claims or defenses that Defendant may have based on principles of estoppel or res judicata has not yet been determined in this court.</p> |
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|    |                                                                    | <p>Code Civ. Proc., § 1908 does not preclude discovery or limit the scope of discovery. Rather, Code Civ. Proc., § 2017.010 is quite broad and provides that “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”</p> <p>Moreover, it is Plaintiffs who brought this action alleging elder abuse, undue influence, incapacity, etc. in support of their claims of quiet title and requests for damages for conversion and negligence.</p> <p>Given this, the Court finds that Defendant has shown good cause to compel further responses.</p> <p>Defendant’s separate request for the Court order Plaintiffs to provide medical authorizations for Decedent’s records is denied. There is no legal authority cited that provides that a Court can compel a party to sign such authorizations.</p> <p>Plaintiffs are ordered to serve further responses within 20 days of service of notice of this ruling.</p> <p>Defendant shall give notice.</p> |
| 10 | Trinh vs. Chan<br><br>2023-01342035                                | Motion for Summary Judgment and/or Adjudication<br><br><b>Continued to 10/05/2026</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 11 | Valdez vs. Physician Partners of America, LLC<br><br>2024-01437568 | Motion for Summary Judgment and/or Adjudication<br><br><b>Off Calendar</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 12 | Wilson vs. Dan<br><br>2025-01523063                                | Motion for Order Requiring Plaintiffs to Furnish Security Bond<br><br>Defendants Claudiu Dan, Ariel Corral, Julio Lopez, Martin Martinez, and Samuel Membreno’s renewed motion for order requiring Plaintiffs to furnish security bond is denied.<br><br><u>Procedural Issues</u><br>The Court notes that there are valid objections to the length of the “motion” and Defendants’ supporting evidence, not to mention the tardiness of the reply papers. However, in the interests of justice, and for sufficient “good cause,” the Court exercises its discretion to                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

consider these documents. The Court sustains Plaintiffs' objections, nos. 4 and 8, to Defendants' evidence, which, in any event, were not material to the disposition of the motion.

Merits

Defendants renew the motion, under Corporations Code section 800, for an order requiring Plaintiffs to furnish a security bond in the amount of \$50,000. (ROA 284.) Under CCP section 1008, subdivision (b), "a party who originally made an application for an order which was refused in whole or part, or granted conditionally or on terms, may make a subsequent application for the same order upon new or different facts, circumstances, or law, in which case it shall be shown by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (b).)

The Court finds the renewed motion does not warrant a different ruling from the 03/09/26 minute order (ROA 254), whereby the first motion for order requiring security bond was denied. Corporations Code section 800 provides, in relevant part, that, "at any time within 30 days after service of summons upon the corporation or upon *any defendant who is an officer or director of the corporation*, or held such office at the time of the acts complained of, *the corporation or the defendant* may move the court for an order, upon notice and hearing, requiring the plaintiff to furnish a bond as hereinafter provided." (Corp. Code, § 800, subd. (c), emphasis added.) In ruling on the motion, the court "shall consider such evidence, written or oral, by witnesses or affidavit, as may be material (1) to the ground or grounds upon which the motion is based, or (2) to a determination of the probable reasonable expenses, including attorneys' fees, of the corporation and the moving party which will be incurred in the defense of the action." (Corp. Code, § 800, subd. (d).)

The Court notes that the corporation at issue, Westminster Bible Chapel of Those Who Meet In The Name Of The Lord Jesus Christ Alone (the "Church"), has never been made a defendant in this action, and is not designated the moving party on this motion. Although Defendants filed a purported "Corporation's Notice of Joinder ..." (ROA 301), there is no record of the Church being properly joined as a defendant in this action; nor does the Court's registrar of actions reflect the Church's status as a defendant in this case. Aside from the corporation, itself, the only other persons who may bring this motion is "any defendant who is an officer or director of the corporation, or held such office at the time of the acts complained of."

The By-Laws of the Church state, in relevant part, that “All persons having legal capacity who are members in good standing with [the Church] and having been approved for membership by the Board of Directors of this corporation shall be eligible for membership.” (ROA 284 [Exh. 2 – By-Laws at p. 1, § 3, emphasis added].)

The By-Laws further provide, with respect to “Special Meetings,” that “Special Meetings of membership may be called by the president or by any two directors or by any 15 active members of this corporation.” (By-Laws at p. 2, § 5.) While the “annual meeting ... shall be held on the third Sunday in April of each year...” (By-Laws at p. 1, § 4.)

In support of this motion, Defendants each submitted a declaration purporting to testify as to the legitimacy of the August 22, 2025 “Special Meeting/Annual Meeting,” whereby they were purportedly elected as the new board of the Church. Among other matters, Defendant Dan attests, “we distributed flyers on August 17, 2025 notifying all members of the August 24 Corporation Meeting.” (ROA 284 [Exh. 3—Dan Decl. at ¶ 19].) Defendant Corral attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as President and CEO by members of Westminster Bible Chapel.” (Exh. 4 [Corral Decl. at ¶ 16].) Defendant Lopez attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as Vice President by members of Westminster Bible Chapel.” (Exh. 5 [Lopez Decl. at ¶ 16].) Defendant Martinez attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as Treasurer/Chief Financial Officer by members of Westminster Bible Chapel.” (Exh. 6 [Martinez Decl. at ¶ 16].) Lastly, Defendant Membreno attests: “The August 24, 2025 meeting was properly noticed and conducted, and I was duly elected as Director of Outreach and Community Engagement by members of Westminster Bible Chapel.” (Exh. 6 [Membreno Decl. at ¶ 15].)

This evidence does not show why the court should reconsider or modify its prior ruling. The By-Laws expressly state that a Special Meeting may be called by “the president or by any two directors or by any 15 active members of this corporation.” Defendants have failed to show that the August 24, 2025 meeting was called by “the president,” “by any two directors,” or by “any 15 active members of this corporation.” Defendants have now had *multiple* opportunities to make this showing, and have not been able to. In other words, Defendants have failed to show that the August 24, 2025 meeting was called by “any 15 active members,” much less that those members were “in good standing with [the Church] and having been approved for membership by the Board of Directors,” as required by the By-

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|  | <p>Laws. Because there is no persuasive evidence that the August 24, 2025 meeting was legitimate, the actions taken on that date, whereby Defendants were purportedly elected as officers and directors, also do not appear to be valid. As such, this motion is denied.</p> <p>Plaintiffs shall give notice of the ruling.</p> <p>Case Management Conference</p> |
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